

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sebastian Saavedra	Team: Squad #01	CCRB Case #: 201809702	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 10/31/2018 10:53 PM, Thursday, 11/01/2018 12:00 AM	Location of Incident: 69th Precinct Station House.	18 Mo. SOL 12/15/2020	Precinct: 69
Date/Time CV Reported Tue, 11/20/2018 3:03 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/20/2018 3:03 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Gunvinder Singh	16799	961289	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Richard Custodio	00000	922194	069 PCT
2. POF Gillian Jordan	11226	938731	069 PCT
3. POM Robert Link	09628	961892	069 PCT
4. LT Abdullraha Hussein	00000	944271	069 PCT
5. POM Matthew Mauro	13615	949284	069 PCT
6. POM John Bridgwood	15170	951558	069 PCT
7. POF Abigail Brunner	21094	958338	069 PCT
8. POM Carlos Delgado	11567	938342	069 PCT
9. POF Mara Langholtz	10225	961878	069 PCT
10. SGT Carnesse Desravine	02639	943161	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Gunvinder Singh	Abuse: Police Officer Gunvinder Singh failed to secure medical treatment for § 87(2)(b)	A . Unsubstantiated

Case Summary

On November 20, 2018, § 87(2)(b) filed this complaint over the phone with the CCRB.

On October 31, 2018, § 87(2)(b) had a physical altercation with his brother, § 87(2)(b) and his mother, § 87(2)(b) inside his apartment at § 87(2)(b) in Brooklyn. § 87(2)(b) called 911, and officers responded. § 87(2)(b) was arrested and taken to § 87(2)(b), where he received treatment for injuries sustained during the fight with his family. § 87(2)(b) was then taken to the 69th Precinct stationhouse. While in the holding cell, § 87(2)(b) requested medical treatment from Police Officer Gunvinder Singh of the 69th Precinct, who did not provide it for him (**Allegation A: Abuse of Authority -Unsubstantiated**).

BWC footage of this incident was obtained for PO Singh as well as Police Officer Robert Link, Police Officer Matthew Mauro, Police Officer John Bridgewood, Police Officer Abigail Brunner, Police Officer Carlos Delgado, Police Officer Mara Langholtz, all from the 69th Precinct and captures § 87(2)(b)'s arrest but does not capture any interaction inside the 69th Precinct Stationhouse (Board Reviews 07, 09, 10, 11, 12, 13, and 14).

Findings and Recommendations.

Allegation A- Abuse of Authority: Police Officer Gunvinder Singh failed to secure medical treatment for § 87(2)(b)

§ 87(2)(b) testified that, inside the 69th Precinct stationhouse cells, he was kicking and screaming and requested medical attention from officers within sight of the holding cell. No one acknowledged his request. A follow-up phone call was made to § 87(2)(b) following PO Singh's testimony and, when asked whether he recalled EMS responding to the stationhouse, § 87(2)(b) stated that he did not wish to speak about the incident further (Board Reviews 01, 08, and 15).

PO Singh testified that § 87(2)(b) requested medical attention from him while at the 69th Precinct station house. An officer called an ambulance for § 87(2)(b) and between approximately 3:30 am and 4:30 am, EMS personnel arrived. They said § 87(2)(b) could not be taken to the hospital as he already had discharge papers on his person, and did not transport § 87(2)(b) (Board Review 02).

Medical treatment of prisoner report #§ 87(2)(b), prepared by PO Singh, states that § 87(2)(b) was treated for injuries prior to being taken to the stationhouse. It does not make mention of any subsequent request for treatment (Board Review 03).

The Command Log, shows that § 87(2)(b) was treated at § 87(2)(b) § 87(2)(b). The log does not note any additional medical treatment or EMS response (Board Review 07).

Ambulance records provided by FDNY do not show that an ambulance responded to the 69th Precinct stationhouse subsequent to § 87(2)(b)'s first hospital visit. (Board Review 04).

§ 87(2)(g) Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO Singh has been a member-of-service for three years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(g)
- As of July 10, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 05)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 1

Investigator:	_____	<u>Investigator Saavedra</u>	_____
	Signature	Print Title & Name	Date
Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date
Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date